

“(11) When any amount has once been ascertained in accordance with the provisions of this section, it shall not thereafter be subject to revision or variation.”

2. This Act may be cited as the Land Settlement Short title. (Facilities) Amendment Act, 1925.

CHAPTER 86.

An Act to amend the law with respect to the administration of criminal justice in England, and otherwise to amend the criminal law.

[22nd December 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

PROBATION OF OFFENDERS.

1.—(1) For the purposes of the principal Act, Probation one or more probation officers shall be appointed for officers. every probation area, and it shall be the duty of probation officers to undertake the supervision of persons in respect of whom supervision is required by a probation order, whether made by a court of summary jurisdiction or by a court of assize or a court of quarter sessions.

(2) The probation committee of a probation area may pay such sums by way of salary or remuneration to the probation officers appointed for the area and to any persons, not being probation officers, named in probation orders made by any court of summary jurisdiction sitting within the area or by any court of assize or quarter sessions in respect of persons who have been committed for trial by examining justices sitting within the area, and such sums on account of

expenses incurred by those officers and persons in the performance of their duties, as, subject to the provisions of this Part of this Act with respect to scales of salaries, remuneration and expenses, may be agreed upon between the committee and the local authority liable to make the payment, or, failing agreement, may be determined by the Secretary of State.

(3) The Secretary of State shall have power by scheme to make such arrangements as he thinks fit with a view to the provision of superannuation allowances or gratuities for probation officers or their legal personal representatives:

Provided that the Secretary of State, before making any such scheme, shall cause notice thereof to be given in such manner as he thinks fit to any local authorities who may be affected thereby, and shall take into consideration any representations with respect thereto which may be submitted to him by any such authority.

Probation
areas and
committees.

2.—(1) Subject as hereinafter provided, every petty sessional division shall be a probation area for the purposes of the principal Act:

Provided that the Secretary of State may, if he thinks it desirable so to do with a view to securing the more effective operation of the law relating to the probation of offenders, by order direct that two or more petty sessional divisions shall be combined to form a probation area.

(2) There shall be a probation committee for every petty sessional division, whether a probation area or not, and for every combined area.

(3) The probation committee shall consist, in the case of a petty sessional division, of three or more justices appointed in the prescribed manner by the justices acting in and for that division, and, in the case of a combined area, of such number of justices, to be appointed in the prescribed manner and representing respectively the justices for the several petty sessional divisions comprised in the combined area and any court of quarter sessions in whose district any part of the combined area is situate, as may be provided by the order constituting the combined area.

(4) A court of quarter sessions for a county may submit to the Secretary of State schemes with respect to

the constitution of combined areas and of probation committees for such areas, and the Secretary of State shall take into consideration any such schemes which may be submitted to him and shall, before making an order constituting a combined area, give to the justices acting in and for any petty sessional division affected by the order an opportunity of making to him any representations which they may desire to make with respect to the order.

(5) Subject as hereinafter provided, it shall be the duty of the probation committee of a probation area to—

- (a) appoint probation officers for the probation area;
- (b) pay the salaries and other sums payable to probation officers and persons named in probation orders and any superannuation allowances or gratuities payable under this Part of this Act;
- (c) supervise the work and receive the reports of such officers and persons; and
- (d) perform such other duties in connection with the probation of offenders as may be prescribed or as the Secretary of State may by order direct:

Provided that—

- (i) in the case of a probation area which is not a combined area the appointment of probation officers for the area shall be made by the justices acting in and for the petty sessional division and not by the probation committee, unless the justices by resolution delegate to the committee the power of appointing probation officers; and
- (ii) in the case of a combined area, the duty of supervising the work and receiving the reports of probation officers and persons named in probation orders shall be performed by the probation committees of the several petty sessional divisions comprised in the area instead of by the probation committee for the area.

(6) Where a stipendiary magistrate is appointed, or other special court of summary jurisdiction is constituted, for an area not being a petty sessional division,

the Secretary of State may by order apply this Part of this Act to that area subject to such adaptations as he may consider necessary or expedient, and the order may contain such supplemental, incidental and consequential provisions as may appear to him necessary or proper for the purposes of the order.

Selection
of probation
officers.

3.—(1) The person to act as probation officer shall, in a case where the probation order is made by a court of summary jurisdiction, be selected from among the probation officers for the probation area for or within which that court exercises jurisdiction, and, where the probation order is made by a court of assize or a court of quarter sessions, be selected from among the probation officers appointed for the probation area for or within which the examining justices by whom the offender was committed for trial act:

Provided that—

(a) if the court making the order thinks it desirable so to do, having regard to the place of residence of the offender or any other special reason, the court may appoint a probation officer for any other probation area to act under the order; and

(b) the court making the order may, in any special case in which it appears desirable so to do, appoint a person not being a probation officer to undertake supervision in respect of that case.

(2) Where the circumstances permit, the court shall appoint a probation officer who is a woman to supervise an offender who is a woman and an officer experienced in dealing with children or young persons to supervise an offender who is under the age of sixteen years.

(3) Where the probation officer or other person named in a probation order has died or is unable for any reason to carry out his duties, or where the court before which the offender is bound by his recognizance to appear for conviction or sentence for any reason considers it desirable that another person should be appointed in the place of that officer or person, the court shall appoint another probation officer or person to undertake supervision in respect of the case.

Employ-
ment of
agents of

4.—(1) It shall be lawful to appoint as a probation officer for any area, or to name in a probation order as

the person to undertake supervision in any special case, a person who is the agent of a voluntary society, and any sums payable by way of salary, remuneration, or otherwise under this Act to such an agent may be paid to the society. voluntary societies as probation officers.

(2) In this section the expression "voluntary society" means a society carrying on mission work in connection with police courts or other work in connection with the supervision and care of offenders.

5.—(1) The sums required to meet any expenses incurred by a probation committee in respect of the salaries, remuneration and expenses of probation officers and of persons, not being probation officers, named in probation orders, and in respect of superannuation allowances or gratuities to probation officers and any other expenses of a probation committee which may be incurred in accordance with rules made by the Secretary of State, shall be defrayed, in accordance with rules so made, by the local authority in whose area the probation area is situate: Salaries and expenses.

Provided that, where a probation area is situate in the area of two or more local authorities, the sums to be defrayed as aforesaid by the local authority shall be apportioned between the several authorities in such manner as may be agreed upon between them, or, in default of agreement, as may be determined by the Secretary of State.

(2) It shall be lawful for a local authority to contribute towards the expense of maintaining persons who have been released on probation under a condition as to residence.

(3) There shall be paid out of moneys provided by Parliament, towards the expenditure of local authorities under this Part of this Act and towards the expense of maintaining persons who have been released on probation as aforesaid, such sums as the Secretary of State, with the approval of the Treasury, may direct, and subject to such conditions as he may with the like approval determine.

(4) If in any case the Secretary of State thinks fit to withhold the whole or any part of the grant which would otherwise have been payable under this section to a local authority in respect of any year, he may direct that the local authority shall be relieved of the liability to

pay the whole or any part of the sums falling to be defrayed under this Part of this Act by the local authority in respect of that year.

Supplemental provisions as to probation orders
4 & 5 Geo. 5.
c. 58

6. The court by which a probation order is made may by the order provide that the powers which, by this Act and by section nine of the Criminal Justice Administration Act, 1914, are conferred on the court before which the offender is bound by his recognizance to appear for conviction or sentence as respects—

- (1) the appointment of a probation officer or other person in lieu of the probation officer or of the other person named in the probation order;
- (2) the variation of the terms and conditions of the recognizance;

may be exercised by any court of summary jurisdiction acting for the area in which the offender may for the time being reside.

Minor amendments of Probation of Offenders Acts.

7.—(1) In every case where a person as respects whom a probation order has been made by a court of summary jurisdiction did not plead guilty or admit the truth of the information, he shall have a right to appeal against the order to a court of quarter sessions on the ground that he was not guilty of the offence charged, in the same manner as if he had been convicted of the offence.

On any such appeal the court of quarter sessions shall allow the appeal if it thinks that the appellant was not guilty of the offence charged, and in any other case shall dismiss the appeal.

(2) The following shall be substituted for subsection (3) of section one of the principal Act:—

“(3) The court may by any such order direct that it shall be a condition of the recognizance to be entered into by the offender that he shall pay such damages for injury or compensation for loss (not exceeding in the case of a court of summary jurisdiction twenty-five pounds, or, if a higher limit is fixed by any enactment relating to the offence, that higher limit), and such costs of the proceedings, as the court thinks reasonable.”

(3) In any case where it is intended in pursuance of section six of the principal Act to issue a summons instead of a warrant in the first instance, it shall not be necessary that the information shall be on oath or in writing.

(4) A court before which an offender is brought or appears under section six of the principal Act for failing to observe the conditions of his recognizance may, instead of sentencing him for the original offence under subsection (5) of that section or remanding him to custody or on bail under subsection (3) of that section, as the case may be, and without prejudice to the continuance in force of the probation order, impose on him in respect of such failure a penalty not exceeding ten pounds.

(5) Where under subsection (3) of the said section six an offender is remanded to custody or on bail by a court of summary jurisdiction, that court shall transmit to the court before which the offender is bound to appear under his recognizance a certificate signed by a justice stating that the offender has failed to observe the conditions of the recognizance, together with such particulars of the circumstances of the case as the first-mentioned court may consider expedient, and for the purposes of proceedings in the court to which it is transmitted the certificate shall be admissible as evidence that the offender has so failed.

(6) Where a person as respects whom a probation order has been made is, in pursuance of subsection (5) of section six of the principal Act, convicted for the original offence and his recognizance is adjudged by the court to be forfeited, the court instead of adjudging the persons bound thereby to pay the sums for which they are respectively bound may, as it thinks fit, adjudge those persons or any of them to pay part only of those sums or may as respects all or any of those persons remit payment thereof.

8. The Secretary of State may make rules for carrying this Part of this Act into effect, and in particular— Power to make rules.

- (a) for prescribing, subject to the provisions of this Part of this Act, the constitution, procedure, powers and duties of probation committees:
- (b) for fixing scales of salaries and remuneration to be paid in the case of probation officers and other persons, not being probation officers, named in probation orders, and of the expenses to be allowed to those officers and persons, and for regulating superannuation allowances and

gratuities payable in the case of probation officers:

- (c) for prescribing the qualification of probation officers, and for providing that the appointment of a probation officer shall not, in any case where the Secretary of State so directs, be effective unless confirmed by him:
- (d) for authorising any powers or duties of a local authority under the principal Act to be delegated to or to be performed by a committee of the authority:
- (e) for prescribing anything which under this Part of this Act is to be prescribed.

Application
of Part I.
to London:

9.—(1) The foregoing provisions of this Part of this Act shall in their application to the metropolitan police court district have effect subject to the following modifications—

- (a) The provisions with respect to the appointment of probation committees shall not apply:
- (b) The power to appoint probation officers and other powers of probation committees shall be exercised by the Secretary of State:
- (c) There shall be paid out of the metropolitan police fund any sums which the Secretary of State may direct to be paid in respect of any salaries, remuneration or other sums payable to probation officers or other persons and of any superannuation allowances or gratuities payable in the case of probation officers, and any sums which the Secretary of State may direct to be paid towards the expense of maintaining persons who have been released on probation under a condition as to residence.

In this paragraph the expression “probation officers” means probation officers appointed by the Secretary of State, and the expression “other persons” means persons, not being probation officers, named in probation orders made by any court of summary jurisdiction sitting within the district, or made by any court of assize or quarter sessions, in respect of persons who have been committed for trial by examining justices sitting within the district.

For the purpose of the provisions of this Part of this Act relating to the payments to be made out of moneys provided by Parliament, any expenditure under this paragraph out of the metropolitan police fund shall be treated as being expenditure of a local authority :

(d) Each division of the district shall be deemed to be a petty sessional division.

(2) In the application of this Part of this Act to the City of London, the City shall be deemed to be a petty sessional division and the provisions relating to the constitution of combined areas shall not apply.

10. In this Part of this Act, unless the context otherwise requires :—

The expression “the principal Act” means the Probation of Offenders Act, 1907, and references to that Act shall be construed as references to that Act as amended by any subsequent enactment, including this Part of this Act :

Interpreta-
tion of
Part I.

7 Edw. 7.
c. 17.

The expression “combined area” means a probation area consisting of two or more petty sessional divisions combined by virtue of an order made by the Secretary of State under this Part of this Act :

The expression “probation order” has the same meaning as in the principal Act :

The expression “local authority” means the authority out of whose funds the salary of the clerk to the justices for the petty sessional division is to be paid :

The expression “prescribed” means prescribed by rules made under this Part of this Act.

PART II.

JURISDICTION AND PROCEDURE.

Indictable Offences generally.

11.—(1) A person charged with any indictable offence may be proceeded against, indicted, tried and punished in any county or place in which he was apprehended, or is in custody on a charge for the offence, or has appeared in answer to a summons lawfully issued charging the offence, as if the offence had been committed in that county or place, and the offence shall, for all purposes incidental to or consequential on the prosecution, trial or punishment

Venue in
indictable
offences.

thereof, be deemed to have been committed in that county or place :

Provided that, if at any time during the course of any proceedings taken against any person before any examining justices in pursuance of this subsection—

11 & 12 Vict.
c. 42.

(a) it appears to the examining justices that the accused would suffer hardship if he were indicted and tried in the county or place aforesaid, the examining justices shall forthwith (but without prejudice to their powers under section twenty-two of the Indictable Offences Act, 1848), cease to proceed further in the matter under this subsection ; and

(b) if the accused applies to the justices to discontinue further proceedings under this subsection on the ground that he will otherwise suffer hardship and the justices refuse to comply with the application, the accused may appeal to the High Court against the decision of the justices, and the justices shall, on being informed by the accused of his intention so to appeal, suspend further proceedings under this subsection pending the decision of the High Court.

On an appeal to the High Court under the foregoing provision the High Court shall either direct the examining justices to cease proceedings under this subsection or shall disallow the appeal, as it thinks proper.

(2) Where any person is charged with two or more indictable offences, he may be proceeded against, indicted, tried and punished in respect of all those offences in any county or place in which he could be proceeded against, indicted, tried or punished in respect of any one of those offences, and all the offences with which that person is charged shall, for all purposes incidental to or consequential on the prosecution, trial or punishment thereof, be deemed to have been committed in that county or place.

(3) Where a person is charged with an offence against the Forgery Act, 1913, or with an offence indictable at common law or under any Act for the time being in force, consisting in the forging or altering of any matter whatsoever, or in offering, uttering, disposing of or putting off any matter whatsoever, knowing the same to be forged or altered, and the offence relates to

3 & 4 Geo. 5.
c. 27.

documents made for the purpose of any Act relating to the suppression of the slave trade, the offence shall for the purposes of jurisdiction and trial be treated as an offence against the Slave Trade Act, 1873.

36 & 37 Vict.
c. 88.

(4) Nothing in this section shall affect the laws relating to the government of His Majesty's Naval, Military or Air Forces.

12.—(1) Where any person is charged before examining justices with an indictable offence, the justices shall, as soon as may be after the examination of each witness for the prosecution has been concluded, cause the deposition of that witness to be read to him in the presence and hearing of the accused, and shall cause him to sign the deposition, and shall forthwith bind him over to attend the trial in manner directed by section twenty of the Indictable Offences Act, 1848, as amended by this Act.

Provisions
as to taking
of depo-
sitions, and
caution to/
and state-
ment of
accused on
proceedings
before
examining
justices.

(2) Immediately after the last witness for the prosecution has been bound over to attend the trial, the examining justices shall read the charge to the accused and explain the nature thereof to him in ordinary language, and inform him that he has the right to call witnesses and, if he so desires, to give evidence on his own behalf.

11 & 12 Vict.
c. 42.

After so doing the examining justices shall then address to him the following words or words to the like effect—

‘Do you wish to say anything in answer to the charge? You are not obliged to say anything unless you desire to do so, but whatever you say will be taken down in writing and may be given in evidence upon your trial.’

(3) Before the accused makes any statement in answer to the charge, the examining justices shall state to him and give him clearly to understand that he has nothing to hope from any promise of favour and nothing to fear from any threat which may have been held out to him to induce him to make any admission or confession of his guilt, but that whatsoever he then says may be given in evidence on his trial notwithstanding the promise or threat.

(4) Whatever the accused states in answer to the charge shall be taken down in manner shown in a form to be prescribed by rules made under this Act in substitution for Form N. in the Schedule to the Indictable Offences Act, 1848, and shall be read over to the accused, and signed by the examining justices and also, if he so

desires, by him, and shall be transmitted to the court of trial with the depositions of the witnesses in manner provided in section twenty of the said Act.

On the trial the statement of the accused taken down as aforesaid, and whether signed by him or not, may be given in evidence without further proof thereof, unless it is proved that the examining justices purporting to sign the statement did not in fact sign it.

(5) Immediately after complying with the requirements of this section relating to the statement of the accused, and whether the accused has or has not made a statement, the examining justices shall ask the accused whether he desires to give evidence on his own behalf and whether he desires to call witnesses.

If the accused in answer to the question states that he wishes to give evidence but not to call witnesses, the justices shall proceed to take forthwith the evidence of the accused, and after the conclusion of the evidence of the accused his counsel or solicitor shall be heard on his behalf if he so desires.

If the accused in answer to the question states that he desires to give evidence on his own behalf and to call witnesses, or to call witnesses only, the justices shall proceed to take either forthwith, or, if a speech is to be made by counsel or solicitor on behalf of the accused, after the conclusion of that speech, the evidence of the accused, if he desires to give evidence himself, and of any witness called by him who knows anything relating to the facts and circumstances of the case or anything tending to prove the innocence of the accused.

All statements made by the accused and all evidence given by him or any such witness as aforesaid (not being a witness merely to the character of the accused) under this subsection shall be taken down in writing and shall be transmitted to the court of trial, together with the depositions of the witnesses for the prosecution, and the provisions of subsection (1) of this section shall apply in the case of witnesses for the defence as they apply in the case of witnesses for the prosecution, except that the justices shall not bind over to attend the trial any witness who is a witness merely to the character of the accused.

(6) Nothing contained in this section shall prevent the prosecutor in any case from giving in evidence at the trial any admission or confession or other statement of

the accused made at any time which is by law admissible as evidence against the accused.

(7) The depositions taken in connection with any charge for an indictable offence shall be signed by the justices before whom they are taken in such manner as may be directed by rules made under this Act, and where any such charge is enquired into by two or more examining justices, the deposition of a witness or the statement of the accused shall for all purposes be deemed to be sufficiently signed if signed by any one of those justices.

(8) The examining justices shall, notwithstanding anything in the Indictable Offences Act, 1848, before determining whether they will or will not commit an accused person for trial, take into consideration his statement or any such evidence as is given in pursuance of this section by him or his witnesses.

13.—(1) Where any person charged before examining justices with an indictable offence is committed for trial and it appears to the justices, after taking into account anything which may be said with reference thereto by the accused or the prosecutor, that the attendance at the trial of any witness who has been examined before them is unnecessary by reason of anything contained in any statement by the accused, or of the accused having pleaded guilty to the charge or of the evidence of the witness being merely of a formal nature, the justices shall, if the witness has not already been bound over, bind him over to attend the trial conditionally upon notice given to him and not otherwise, or shall, if the witness has already been bound over, direct that he shall be treated as having been bound over to attend only conditionally as aforesaid, and shall transmit to the court of trial a statement in writing of the names, addresses and occupations of the witnesses who are, or who are to be treated as having been bound over to attend the trial conditionally.

Binding
over of
witnesses
conditionally
and reading
of deposi-
tions at trial.

(2) Where a witness has been, or is to be treated as having been bound over conditionally to attend the trial, the prosecutor or the person committed for trial may give notice at any time before the opening of the assizes or quarter sessions to the clerk to the examining justices and at any time thereafter to the clerk of assize or the clerk of the peace, as the case may be, that he desires the witness to attend at the

trial, and any such clerk to whom any such notice is given shall forthwith notify the witness that he is required so to attend in pursuance of his recognizance.

The examining justices shall on committing the accused for trial inform him of his right to require the attendance at the trial of any such witness as aforesaid, and of the steps which he must take for the purpose of enforcing such attendance.

(3) Where any person has been committed for trial for any offence, the deposition of any person taken before the examining justices may, if the conditions hereinafter set out are satisfied, without further proof be read as evidence on the trial of that person, whether for that offence or for any other offence arising out of the same transaction, or set of circumstances, as that offence.

The conditions hereinbefore referred to are the following:—

- (a) The deposition must be the deposition either of a witness whose attendance at the trial is stated to be unnecessary in accordance with the provisions of this section, or of a witness who is proved at the trial by the oath of a credible witness to be dead or insane, or so ill as not to be able to travel, or to be kept out of the way by means of the procurement of the accused or on his behalf:
- (b) It must be proved at the trial, either by a certificate purporting to be signed by the justice before whom the deposition purports to have been taken or by the clerk to the examining justices, or by the oath of a credible witness, that the deposition was taken in the presence of the accused and that the accused or his counsel or solicitor had full opportunity of cross-examining the witness:
- (c) The deposition must purport to be signed by the justice before whom it purports to have been taken:

Provided that the provisions of this subsection shall not have effect in any case in which it is proved—

- (i) That the deposition, or, where the proof required by paragraph (b) of this subsection is given by means of a certificate, that the certificate, was not in fact signed by the justice by whom it purports to have been signed; or

- (ii) Where the deposition is the deposition of a witness whose attendance at the trial is stated to be unnecessary as aforesaid, that the witness has been duly notified that he is required to attend the trial.

(4) A witness whose attendance at the trial is stated to be unnecessary in accordance with the provisions of this section shall not be required to attend before the grand jury, and his deposition may be read as evidence before the grand jury.

(5) Any documents or articles produced in evidence before the examining justices by any witness whose attendance at the trial is stated to be unnecessary in accordance with the provisions of this section and marked as exhibits shall, subject to the provisions of section five of the Prosecution of Offences Act, 1879 (which relates to delivery of documents to the Director of Public Prosecutions), and unless in any particular case the justices otherwise order, be retained by the justices and forwarded with the depositions to the court of trial.

42 & 43 Vict.
c. 22.

14.—(1) The justices before whom any person is charged with an indictable offence, may, instead of committing him to be tried at the assizes or quarter sessions for a place to which but for this section he might have been committed, commit him to be tried at the assizes for some other place or (if the offence is within the jurisdiction of a court of quarter sessions) at the quarter sessions for some other place if it appears to them, having regard to the time when and the place where the last-mentioned assizes or quarter sessions are to be held, to be more convenient to commit the accused person to those assizes or quarter sessions with a view either to expediting his trial or saving expense:

Power of
justices to
commit to,
and of court
to direct
re-trial at,
convenient
assizes or
quarter
sessions.

Provided that the power given by this subsection shall not be exercised—

- (a) unless the examining justices are satisfied at the date of the committal that the next assizes or quarter sessions to which but for this section he might have been committed will not be held within one month from that date; or
- (b) in any case in which the accused satisfies the examining justices that he would, if the power were exercised, suffer hardship.

(2) Where for any reason whatsoever the trial of a person who has been committed to be tried for an indictable offence before a court of assize or quarter sessions for any place is either not proceeded with or not brought to a final conclusion before that court, it shall be lawful for that court, if in its discretion it thinks it convenient so to do with a view either to expediting the trial or re-trial or the saving of expense or otherwise and is satisfied that the accused will not thereby suffer hardship, to direct that the trial or re-trial of the accused shall take place before a court of assize, or (if the offence is within the jurisdiction of a court of quarter sessions) before a court of quarter sessions, for some other place.

(3) His Majesty may from time to time by Order in Council make such provisions as to the jurisdiction of the court of trial and the attendance, jurisdiction, authority and duty of sheriffs, coroners, justices, gaolers, officers, jurors and persons, the use of any prison, the removal of prisoners, the alteration of any commissions, writs, precepts, indictments, recognizances, proceedings and documents, the transmission of recognizances, inquisitions, depositions (including exhibits thereto), and documents, and the expenses of maintaining and removing prisoners, as seem necessary or expedient for the purposes of the foregoing provisions of this section.

(4) Where a person is to be tried or re-tried by any court by which he could not have been tried but for the foregoing provisions of this section, any costs payable in the case under the Costs in Criminal Cases Act, 1908, shall in the first instance be paid in the same manner as if the offence had been committed in the county or borough in which the offender is tried, but shall be recoverable by the treasurer of that county or borough from the treasurer of the county or borough in which the offence was committed.

(5) Where any person who is to be committed for trial before any court of quarter sessions for any county or borough is to be admitted to bail, the examining justices may, if the next quarter sessions for that county or borough are to be held within five days of the date of committal, commit the accused person to the next quarter sessions but one:

Provided that the power given by this subsection shall not be exercised unless the next quarter sessions but one are due to be held within eight weeks of the date of committal.

15. Where in the course of a criminal trial any member of the jury dies or is discharged by the court as being through illness incapable of continuing to act or for any other reason, the jury shall nevertheless, subject to assent being given in writing by or on behalf of both the prosecutor and the accused and so long as the number of its members is not reduced below ten, be considered as remaining for all the purposes of that trial properly constituted, and the trial shall proceed and a verdict may be given accordingly.

Provision for continuance of criminal trial where a juror dies or becomes incapable.

16.—(1) An application to the Attorney-General under subsection (6) of section one of the Criminal Appeal Act, 1907, for a certificate authorising an appeal to the House of Lords from the decision of the Court of Criminal Appeal, shall be made within a period of seven days from the date when the decision of the court was given.

Amendments of Criminal Appeal Act, 1907.
7 Edw. 7.
c. 23.

(2) Where the Court of Criminal Appeal has allowed an appeal against conviction and the prosecutor gives notice to the court immediately after the decision of the court has been given on the appeal that he intends to apply to the Attorney-General for such a certificate as aforesaid, the court may make an order providing for the detention of the defendant, or directing that the defendant shall not be released except on bail, until either the Attorney-General has refused to grant the certificate or a decision on the appeal has been given by the House of Lords, as the case may be.

(3) The power to make rules of court conferred by section eighteen of the Criminal Appeal Act, 1907, shall include power to make rules for the purpose of carrying this section into effect.

17. The Lord Chancellor may, subject to the express provisions of this and of any other Act, make rules for regulating the practice and procedure of examining justices on or in relation to proceedings for indictable offences, and with respect to the forms to be used in connection with any such proceedings, and generally for carrying into effect the enactments relating to such

Rules with respect to procedure of examining justices.

proceedings, and provision may be made by such rules for revoking or amending any forms which are directed or authorised by any statute to be used in connection with any such proceedings, and for substituting new forms for any of such forms.

Quarter Sessions.

Extension of
criminal
jurisdiction
of quarter
sessions.

18. Notwithstanding anything to the contrary in any Act, a court of quarter sessions shall, in addition to such jurisdiction with respect to the trial of offences as is vested in courts of quarter sessions at the commencement of this Act, have jurisdiction to try a person charged with any of the offences specified in the First Schedule to this Act.

Power to
dispense
with grand
jury at
quarter ses-
sions where
all persons
committed
have
pleaded
guilty.
10 & 11 Geo.
5. c. 81.
8 Edw. 7.
c. 41.

19.—(1) If by the fifth day preceding the day appointed for holding any quarter sessions no persons have been committed for trial at the sessions except persons in respect of whom a certificate has been transmitted in pursuance of section four of the Administration of Justice Act, 1920, stating that they have pleaded guilty or admitted the truth of the charge, there shall be deemed to be no business requiring the attendance of grand jurors at that sessions, and the provisions of the Assizes and Quarter Sessions Act, 1908, shall apply accordingly.

(2) In any case to which this section applies an indictment against any person for the offence in respect of which he was committed for trial may be presented to the court without having been found by a grand jury, and, where an indictment is so presented, it shall be proceeded with in the same manner as it would have been proceeded with before the commencement of this Act, and all enactments and rules of law relating to procedure in connection with indictable offences shall have effect accordingly.

(3) An indictment against any person presented to a court of quarter sessions in pursuance of this section may contain, in addition to the counts for the offences specified in the caption of the depositions, any further counts founded on facts or evidence disclosed in any examination or deposition taken before a justice in the presence of the accused.

A court of quarter sessions may in any case direct any such further counts as aforesaid to be added to any indictment presented to the court.

(4) Rules may be made under the Indictments Act, 1915, for carrying this section into effect, and in particular for modifying, so far as is necessary for the purpose of this section, any enactment, including any statutory form, and for applying with the necessary modifications the provisions of section three of the Indictable Offences Act, 1848, relating to certificates of an indictment having been found.

5 & 6 Geo. 5.
c. 90.

11 & 12 Vict.
c. 42.

20.—(1) After the determination by a court of quarter sessions of any appeal against a conviction by a court of summary jurisdiction or the sentence imposed on such a conviction, either party to the proceedings may, if dissatisfied with the determination of the court of quarter sessions as being erroneous in point of law, make an application in writing to the court of quarter sessions at any time within seven days after the date of the determination of the appeal to have a case stated for the opinion of the High Court on the point of law.

Court of
quarter
sessions on
appeal to
state case on
point of law.

Any such application may be made by delivering it to the clerk of the peace, and for the purpose of the making of any such application, the court of quarter sessions shall, if and so far as necessary, be deemed to have been adjourned until the next subsequent sitting of the court.

(2) The applicant shall, before the case is stated and delivered to him by the court of quarter sessions, enter before a justice having jurisdiction in the county or place for which the court of quarter sessions acts into a recognizance, with or without sureties and in such sum as the justice considers proper, having regard to the means of the applicant, conditioned to prosecute the appeal without delay and to submit to the judgment of the High Court, and pay such costs as may be awarded by that court, and the applicant shall before the case is delivered to him pay to the clerk of the peace his fees for and in respect of the case, and to the clerk to the justices his fee for and in respect of the recognizances.

(3) If a court of quarter sessions is of opinion that an application under this section is frivolous, it may

refuse to state a case, and where the court does so it shall, if the applicant so requires, cause the clerk of the peace to deliver to him a certificate of the refusal, and the reasons for the refusal shall be stated in the certificate:

Provided that the court shall not refuse to state a case where the application is made by or on behalf of the Attorney-General.

(4) Where a court of quarter sessions refuses to state a case, the applicant may apply to the High Court for a rule calling on the court of quarter sessions and the other party to the proceedings to show cause why a case should not be stated, and the High Court may make such order on the application as the High Court thinks fit.

Power to
enter appeal
for adjourned
or inter-
mediate
sessions.
42 & 43 Vict.
c. 49.

21. An appeal under section thirty-one of the Summary Jurisdiction Act, 1879 (which regulates the procedure on appeals from courts of summary jurisdiction), may be entered for hearing at a court of quarter sessions held by adjournment (unless it is a court held by adjournment for some particular area only which does not comprise the area in respect of which jurisdiction is exercised by the court from which the appeal is brought), or at an intermediate court of general sessions, and the expression "the next practicable court of general or quarter sessions" in paragraph (1) of that section shall be construed accordingly.

Times for
holding
county
quarter
sessions.
11 Geo. 4. &
1 Will. 4.
c. 70.

22.—(1) General quarter sessions of the peace for any county shall, instead of being held at the times prescribed by section thirty-five of the Law Terms Act, 1830, be held at such times within the period of twenty-one days immediately preceding or immediately following the twenty-fifth day of March, the twenty-fourth day of June, the twenty-ninth day of September and the twenty-fifth day of December in every year as the court of quarter sessions for the county or the justices of the county assembled at a special meeting (which special meeting they are hereby authorised to hold) may from time to time fix.

(2) In this section the expression "county" includes a riding, division or part of a county for which a separate

court of quarter sessions is held, but does not include the County of London or a county of a city or a county of a town.

23.—(1) The justices of the peace for the county of Hertford shall in every year hold, alternately within the Hertford division and within the Liberty of St. Alban division of the said county, courts of general or quarter sessions of the peace for the whole county of Hertford:

Amendment
of County of
Hertford
Acts, 1874
and 1878.
37 & 38 Vict.
c. 45 ;
41 & 42 Vict.
c. 50.

- (a) An Epiphany session within the Hertford division within the period of twenty-one days immediately preceding or immediately following the twenty-fifth day of December ;
- (b) An Easter session within the Liberty of St. Alban division within the period of twenty-one days immediately preceding or immediately following the twenty-fifth day of March ;
- (c) A Midsummer session within the Hertford division within the period of twenty-one days immediately preceding or immediately following the twenty-fourth day of June ;
- (d) A Michaelmas session within the Liberty of St. Alban division within the period of twenty-one days immediately preceding or immediately following the twenty-ninth day of September.

(2) The said justices shall, on each occasion after holding in pursuance of the foregoing provisions of this section a session in one of the said divisions of the county, hold a session by adjournment in the other of the said divisions, and may at any time, whether before or after the adjourned sessions to be held under this subsection, hold such other sessions by adjournment in either of the said divisions as they may consider necessary for the purpose of disposing of any business requiring to be disposed of.

(3) Every court held under this section shall be a court of quarter sessions for the whole county of Hertford, and shall have power to hear, determine, and dispose of all business accordingly, including any business pending in either of the two divisions of the said county at the commencement of this Act.

(4) The justices in the Hertford division assembled shall from time to time at sessions held under this section in that division elect persons to act as chairman and deputy chairman of the court of quarter sessions of the county of Hertford when the court is sitting within the Hertford division, and the justices in the Liberty of St. Alban division assembled shall from time to time at sessions held under this section in that division elect persons to act as chairman and deputy chairman of the said court when the court is sitting within the Liberty of St. Alban division.

(5) Section five of the County of Hertford Act, 1878, shall have effect as though for the references to the Hertford division quarter sessions and the St. Alban division quarter sessions there were respectively substituted references to the sessions for the county of Hertford held under this Act within the Hertford division and the sessions for the said county so held within the Liberty of St. Alban division.

Summary Jurisdiction.

Summary
trial of
indictable
offences.

24.—(1) Where a person who is an adult is charged before a court of summary jurisdiction with an indictable offence, being one of the offences specified in the Second Schedule to this Act, the court, if it thinks it expedient so to do, having regard to any representation made in presence of the accused by or on behalf of the prosecutor, the character and antecedents of the accused, the nature of the offence, the absence of circumstances which would render the offence one of a grave or serious character and all the other circumstances of the case (including the adequacy of the punishment which a court of summary jurisdiction has power to inflict), and if the accused, when informed by the court of his right to be tried by a jury, consents to be dealt with summarily, may, subject to the provisions of this section, deal summarily with the offence, and, if the accused pleads guilty to, or is found guilty of, the offence charged, may sentence him to be imprisoned for any term not exceeding six months or to a fine not exceeding one hundred pounds or to both such imprisonment and fine :

Provided that—

- (a) where a case affects the property or affairs of His Majesty or of a public body as defined by

section seven of the Public Bodies Corrupt Practices Act, 1889, as amended by any other Act, the court shall not deal with the case summarily without the consent of the prosecutor; and

52 & 53 Vict.
c. 69.

- (b) where the prosecution is being carried on by the Director of Public Prosecutions, the court shall not deal with the case summarily without the consent of the Director; and
- (c) where a person pleads guilty to, or is found guilty of, any offence of inciting to commit a summary offence, he shall not be liable to any greater penalty than that to which he would have been liable if he had been found guilty of committing that summary offence.

(2) If a court of summary jurisdiction at any time during the hearing of a charge for such an indictable offence as aforesaid against a person who is an adult becomes satisfied that it is expedient to deal with the case summarily, the court shall thereupon, for the purpose of proceedings under this section, cause the charge to be reduced into writing and read to the accused and shall then address to him a question to the following effect, "Do you desire to be tried by a jury, or do you consent to the case being dealt with summarily?" with a statement, if the court thinks such a statement desirable for his information, of the meaning of the case being dealt with summarily, and of the assizes or quarter sessions, as the case may be, at which he will be tried, if tried by a jury, and if the accused consents to be dealt with summarily, shall forthwith ask him the following question, "Do you plead guilty or not guilty?"

(3) Any enactments in force at the commencement of this Act which relate to the summary trial of indictable offences or which refer to indictable offences which are triable summarily shall, subject to the provisions of this section, be construed, as the case may be, as applying to the summary trial of indictable offences under this section or as referring to all indictable offences which are triable summarily thereunder.

(4) In this section the expression "adult" means a person who is, in the opinion of the court before which he is charged, of the age of sixteen years or upwards.

Right of appeal
against sen-
tence imposed
by court of
summary
jurisdiction.

25. A person who after pleading guilty or admitting the truth of the information is convicted of any offence by a court of summary jurisdiction shall have a right to appeal in manner provided by the Summary Jurisdiction Acts to a court of quarter sessions against his sentence.

Enforcement
of recog-
nizances to
be of good
behaviour.
42 & 43 Vict.
c. 49.

26.—(1) Subsection (2) of section nine of the Summary Jurisdiction Act, 1879 (which relates to the enforcing by courts of summary jurisdiction of recognizances to keep the peace or to be of good behaviour), shall have effect as though there were inserted therein after the words “a breach of the condition of the same” the words “or in the case of a recognizance conditioned to be of good behaviour, upon proof that the person bound as principal has since the date of the recognizance been guilty of conduct which is a breach of the condition.”

(2) Where a surety to a recognizance to keep the peace or to be of good behaviour has reason to suspect that the person bound as principal has been or is about to be guilty of conduct which was or would be a breach of the conditions of the recognizance, he may lay an information before any justice of the peace having jurisdiction either in the place in which the said person is or is believed by the informant to be or in the place where the court by which the recognizance was ordered to be entered into was held, and that justice may thereupon, if in his discretion he thinks fit, issue a warrant or summons against the said person.

The court before which the said person is brought under any such warrant or before which he appears in answer to any such summons may, as it thinks fit, either order him to enter into a fresh recognizance, with or without sureties, or deal with him in the same manner as if he were a person who had failed to comply with an order to enter into a recognizance and find sureties to keep the peace or to be of good behaviour, and shall in either case order that the first mentioned recognizance shall be discharged.

Consecutive
sentences
of imprison-
ment.

27. Where a person has been sentenced by a court of summary jurisdiction to imprisonment in default of payment of a fine, the court may, notwithstanding anything in any enactment, order that the sentence shall begin at the expiration of any term of imprisonment imposed for that offence on that person in addition to the fine.

28.—(1) Section three of the Perjury Act, 1911 (which relates to false statements as to marriages) shall have effect as though at the end of subsection (1) thereof there were inserted the words “and on summary conviction thereof shall be liable to a penalty not exceeding fifty pounds.”

Summary proceedings for offence under s. 3, and amendments of ss. 3 and 4, of Perjury Act, 1911. 1 & 2 Geo. 5. c. 6.

(2) A person convicted summarily of an offence under section four of the Perjury Act, 1911 (which relates to false statements as to births or deaths), shall be liable to a penalty not exceeding fifty pounds.

(3) Summary proceedings for an offence under the said section three or under the said section four may, notwithstanding any provision of the Summary Jurisdiction Acts, be instituted at any time within twelve months after the commission of the offence.

29. Where a warrant of distress is issued under section six hundred and ninety-three of the Merchant Shipping Act, 1894, for the purpose of levying any amount ordered to be paid on the conviction of the master of a ship, section twenty of the Summary Jurisdiction Act, 1848 (which authorises the detention of a defendant pending the return to a warrant of distress), shall apply as though the distress were to be levied on the goods of the defendant.

Application of s. 20 of 11 & 12 Vict. c. 43. where distress warrant issued under s. 693 of 57 & 58 Vict. c. 60. 11 & 12 Vict. c. 43.

30. Notwithstanding anything in section six hundred and eighty of the Merchant Shipping Act, 1894 (which relates to the prosecution of offences under the Merchant Shipping Acts), any offence whatsoever under section ten of the Merchant Shipping Act, 1906 (which relates to the carrying of wood goods as deck cargo), may be prosecuted summarily.

Summary proceedings for offences under s. 10 of 6 Edw. 7. c. 48.

Issue of Process by Justices.

31.—(1) Where it appears to any justice necessary or expedient, with a view to the better administration of justice, that any person charged with any indictable offence, or with a summary offence, should be tried jointly with or in the same place as some other person who is charged with an indictable offence or a summary offence, as the case may be, and who is in custody or is being or is

Provisions as to issue of process by justices in case of persons outside jurisdiction.

to be proceeded against within the jurisdiction of that justice, he may, notwithstanding that the person so charged is not within that jurisdiction, issue a summons or a warrant against him.

Where a person charged with a summary offence or an offence which may be dealt with summarily is brought to any place under a warrant issued under this subsection, or appears in any place in answer to a summons so issued, a court of summary jurisdiction having jurisdiction in that place shall have the same power to hear and dispose of the charge as the court would have had if the offence had been committed within the jurisdiction of the court.

(2) Where an offence punishable on summary conviction has been committed, or is suspected of having been committed, by any person who is residing or being, or is believed to reside or be, within the jurisdiction of any justice, that justice shall have power to issue a warrant of any description in the case in the same manner as if the offence had been committed within his jurisdiction :

Provided that every warrant so issued for the arrest of any person shall direct that the offender shall when apprehended be taken before a court of summary jurisdiction having jurisdiction to deal with the case.

(3) Any warrant lawfully issued by a justice for compelling the appearance of any person or for apprehending any person charged with an offence, whether punishable on summary conviction or on indictment, and any warrant of commitment, search-warrant or warrant of distress, lawfully issued by a justice, may be executed in any county or place in England or Wales outside the jurisdiction of the justice by whom it was issued in the same manner as if it had been originally issued by a justice having jurisdiction in that county or place, and the execution may be effected either by any person to whom the warrant was originally directed or by any constable of that county or place, and in the case of a warrant of commitment the person apprehended may be conveyed either to the prison mentioned in the warrant or to any other prison.

(4) The power of a justice under section sixteen of the Indictable Offences Act, 1848, and under section seven

of the Summary Jurisdiction Act, 1848, to issue process for the purpose of obtaining the attendance as a witness of any person within the jurisdiction of the justice, and under section twenty-nine of the Criminal Justice Administration Act, 1914, to summon and require any such person to attend as a witness and to produce such books, plans, papers, documents, articles, goods and things as are mentioned in the said section, shall be extended so as to authorise the issue of such process in the case of a person who though not within the jurisdiction of the justice is in any county or place in England or Wales.

11 & 12 Vict.
c. 43.
4 & 5 Geo. 5.
c. 58.

Miscellaneous.

32.—(1) Every information, complaint, summons, warrant or other document laid, issued or made for the purpose of or in connection with any proceedings before examining justices or a court of summary jurisdiction for an offence, shall be sufficient if it contains a statement of the specific offence with which the accused person is charged, together with such particulars as may be necessary for giving reasonable information as to the nature of the charge.

Form of
documents
in criminal
proceedings
before
justices.

(2) The statement of the offence shall describe the offence shortly in ordinary language, avoiding as far as possible the use of technical terms, and without necessarily stating all the essential elements of the offence, and, if the offence charged is one created by statute, shall contain a reference to the section of the statute creating the offence.

(3) After the statement of the offence, necessary particulars of the offence shall be set out in ordinary language, in which the use of technical terms shall not be required.

(4) Any information, complaint, summons, warrant or other document to which this section applies which is in such form as would have been sufficient in law if this Act had not passed shall notwithstanding anything in this section continue to be sufficient in law.

33.—(1) Where a corporation is charged, whether alone or jointly with some other person, with an indictable offence, the examining justices may, if they are of

Procedure on
charge of
offence

against cor-
poration.

opinion that the evidence offered on the part of the prosecution is sufficient to put the accused corporation upon trial, make an order empowering the prosecutor to present to the grand jury at assizes or quarter sessions, as the case may be, a bill in respect of the offence named in the order, and for the purpose of any enactments referring to committal for trial (including this Act) any such order shall be deemed to be a committal for trial:

Provided that—

- (a) Where the offence is an offence which in the case of an adult may be dealt with summarily and the corporation does not appear before the examining justices by a representative or, if it does so appear, consents that the offence should be so dealt with, the justices may deal with the offence summarily; and
- (b) If the corporation appears before the examining justices by a representative, any answers to the questions to be put under the section of this Act which re-enacts with modifications the provisions of section eighteen of the Indictable Offences Act, 1848, may be made on behalf of the corporation by that representative, but if the corporation does not so appear it shall not be necessary to put the questions, and the examining justices may, notwithstanding, make an order under this subsection.

(2) Where any person is charged jointly with a corporation with any offence and either that person or the corporation by its representative does not consent that the offence (being an indictable offence) should be dealt with summarily, or either that person or the corporation claims (if the offence is a summary offence) to be tried by a jury, the examining justices or the court of summary jurisdiction, as the case may be, shall not have power to deal summarily with the offence in the case of the other offender.

(3) Where the grand jury at any assizes or quarter sessions return a true bill against a corporation in respect of any offence, the corporation may, on arraignment before the court of assize or the court of quarter

sessions, as the case may be, enter in writing by its representative a plea of guilty or not guilty, and if either the corporation does not appear by a representative or, though it does so appear, fails to enter as aforesaid any plea, the court shall order a plea of not guilty to be entered and the trial shall proceed as though the corporation had duly entered a plea of not guilty.

(4) Provision may be made by rules under the Indictments Act, 1915, with respect to the service on any corporation charged with an indictable offence of any documents requiring to be served in connection with the proceedings, except in so far as such provision may be made by rules to be made under the section of this Act giving power to make rules with respect to the procedure of examining justices. 5 & 6 Geo. 5.
c. 90.

(5) Where a corporation is charged with an offence in the case of which an individual is entitled under section seventeen of the Summary Jurisdiction Act, 1879, to claim to be tried by a jury, a claim to be so tried may be made on behalf of the corporation by its representative, and the said section seventeen shall apply accordingly, and where the corporation does not appear by a representative or no such claim is made on behalf of the corporation the court may, subject to the provisions of this section, deal with the case summarily as if the offence were an offence to which the said section did not apply.

(6) In this section the expression "representative" in relation to a corporation means a person duly appointed by the corporation to represent it for the purpose of doing any act or thing which the representative of a corporation is by this section authorised to do, but a person so appointed shall not, by virtue only of being so appointed, be qualified to act on behalf of the corporation before any court for any other purpose.

A representative for the purposes of this section need not be appointed under the seal of the corporation, and a statement in writing purporting to be signed by a managing director of the corporation, or by any person (by whatever name called) having, or being one of the persons having, the management of the affairs of the corporation, to the effect that the person named in the statement has been appointed as the representative of the corporation for the purposes of this section shall be

admissible without further proof as prima facie evidence that that person has been so appointed.

Fiats and
consents of
Attorney-
General,
&c., to be
admissible
in evidence.

34. Any document purporting to be the fiat, order or consent of the Attorney-General, the Solicitor-General, the Director of Public Prosecutions, the Postmaster-General or the Board of Control respectively, for or to the institution of any criminal proceedings or the institution of criminal proceedings in any particular form, and to be signed by the Attorney-General, the Solicitor-General, the Director of Public Prosecutions or an Assistant Director of Public Prosecutions, the Postmaster-General or a Commissioner or the Secretary of the Board of Control, as the case may be, shall be admissible as prima facie evidence without further proof.

PART III.

AMENDMENTS AS TO OFFENCES.

Amendment
of ss. 1
and 18
of Forgery
Act, 1913.
3 & 4 Geo. 5.
c. 27.

35.—(1) For the purpose of removing doubts, it is hereby declared that a document may be a false document for the purposes of the Forgery Act, 1913, notwithstanding that it is not false in any such manner as is described in subsection (2) of section one of that Act.

(2) The Forgery Act, 1913, shall have effect as though in the definition of “valuable security” in section eighteen thereof there were inserted after the words “security for the payment of money” the words “or any authority or request for the payment of money or for the delivery or transfer of goods or chattels.”

Forgery of
passport.

36.—(1) The forgery of any passport, or the making by any person of a statement which is to his knowledge untrue for the purpose of procuring a passport, whether for himself or any other person, shall be a misdemeanour punishable with imprisonment not exceeding two years or a fine not exceeding one hundred pounds or both such imprisonment and fine.

(2) In this section the expression “forgery” has the same meaning as in the Forgery Act, 1913.

Unlawful
possession
of pension
documents.

37.—(1) If any person receives, detains or has in his possession any document to which this section applies as a pledge or a security for a debt or with a view to obtaining payment from the person entitled thereto of a

debt due either to himself or to any other person, he shall be liable, on summary conviction, to a fine not exceeding twenty pounds, or to imprisonment for a term not exceeding six months, or to both such fine and imprisonment.

(2) This section applies to certificates or official documents evidencing or issued in connection with the right of persons to pensions or allowances payable out of any grant which may be made out of the Consolidated Fund of the United Kingdom in pursuance of any Act for civil non-effective services.

38.—(1) If any person makes, or causes to be made, or uses for any purpose whatsoever, or utters, any document purporting to be, or in any way resembling, or so nearly resembling as to be calculated to deceive, any currency or bank note, or any part thereof, he shall be guilty of an offence against this section and shall be liable on summary conviction to a fine not exceeding five pounds, and it shall be lawful for the court dealing with the case to order the document in respect of which the offence was committed, and any copies of that document, or any plates, blocks, dies or other instruments used for, or capable of being used for, printing or reproducing any such document which are in the possession of the offender to be destroyed.

Imitation,
&c. of
currency or
bank notes.

(2) If any person whose name appears on any document the making of which is an offence under this section refuses, without lawful excuse, to disclose to a police officer on being so required the name and address of the person by whom it was printed or otherwise made, he shall be liable on summary conviction to a fine not exceeding ten pounds.

(3) Where the name of any person appears on any document in respect of which any person is charged with an offence under subsection (1) of this section, or on any other document used or distributed in connection with that document, it shall be *prima facie* evidence that that person caused the document to be made.

(4) In this section the expression “currency note” means a currency note issued under the Currency and Bank Notes Act, 1914, and includes any note of a similar character, by whatever name called, issued by or on behalf of the government of any foreign state or any

part of His Majesty's Dominions outside the United Kingdom, and the expression "bank note" has the same meaning as in the Forgery Act, 1913.

Amendment
of ss. 42
and 43 of
Offences
against the
Person Act,
1861.
24 & 25 Vict.
c. 100.

39.—(1) Where a person has been convicted by a court of summary jurisdiction of an offence under section forty-two of the Offences against the Person Act, 1861 (which imposes a penalty on persons committing any common assault or battery) he shall instead of being liable to a fine not exceeding, together with costs, the sum of five pounds, be liable to a fine not exceeding five pounds in addition to any costs which the court may order him to pay.

(2) The fine to which a person shall be liable on conviction by a court of summary jurisdiction for an offence under section forty-three of the Offences against the Person Act, 1861 (which imposes a penalty on persons committing an aggravated assault), shall, instead of being a fine not exceeding together with costs the sum of twenty pounds, be a fine not exceeding the sum of fifty pounds, and the offender shall in addition be liable to pay any costs which the court may order him to pay.

(3) A court of summary jurisdiction by which any person is convicted of an offence under either of the enactments mentioned in this section may, in addition to imposing any penalty, order the offender to enter into a recognizance, with or without sureties, to keep the peace or to be of good behaviour for a period not exceeding twelve months.

Penalty for
drunkenness
while in
charge of
motor car.

40.—(1) Any person who is drunk while in charge on any highway or other public place of any mechanically-propelled vehicle shall, on summary conviction, be liable in respect of each offence to imprisonment for a period not exceeding four months or to a fine not exceeding fifty pounds, or to both such imprisonment and fine.

3 Edw. 7.
c. 36.

(2) A person convicted under the preceding subsection shall (without prejudice to the power of the court under section four of the Motor Car Act, 1903, to order a longer period of disqualification) be disqualified for holding a licence for a period of twelve months from the date of the conviction, and any licence held by him shall, so long as the disqualification continues, be of no effect.

The court shall cause particulars of any such conviction and of the resulting disqualification to be endorsed upon any licence held by the person convicted, and shall send notice of the conviction to the council by whom the licence was granted.

(3) If a person who under this section is disqualified for holding a licence applies for or obtains a licence while he is so disqualified, he shall be guilty of an offence under the Motor Car Act, 1903, and any licence so obtained shall be of no effect.

(4) A person who by virtue of a conviction under this section is disqualified for holding a licence, or who, by virtue of an order made under section four of the Motor Car Act, 1903, on his being convicted of an offence, is disqualified for obtaining a licence or whose licence is suspended may, at any time after the expiration of three months from the date of the conviction, apply from time to time to the court before which he was convicted to remove the disqualification or suspension, and on any such application the court may by order, as it thinks proper, having regard to the character of the person convicted and his conduct subsequent to conviction, the nature of the offence, and the other circumstances of the case, either remove the disqualification or suspension as from such date as may be specified in the order or refuse the application, and, if the court order a disqualification or suspension to be removed, the court shall cause particulars of the order to be endorsed on the licence, if any, held by the applicant.

(5) In this section the expression "licence" means a licence granted under section three of the Motor Car Act, 1903.

41.—(1) No person shall—

- (a) take or attempt to take in any court any photograph, or with a view to publication make or attempt to make in any court any portrait or sketch, of any person, being a judge of the court or a juror or a witness in or a party to any proceedings before the court, whether civil or criminal; or
- (b) publish any photograph, portrait or sketch taken or made in contravention of the foregoing provisions of this section or any reproduction thereof;

Prohibition
on taking
photographs,
&c., in court.

and if any person acts in contravention of this section he shall, on summary conviction, be liable in respect of each offence to a fine not exceeding fifty pounds.

(2) For the purposes of this section—

- (a) the expression “court” means any court of justice, including the court of a coroner;
- (b) the expression “judge” includes recorder, registrar, magistrate, justice and coroner;
- (c) a photograph, portrait or sketch shall be deemed to be a photograph, portrait or sketch taken or made in court if it is taken or made in the court-room or in the building or in the precincts of the building in which the court is held, or if it is a photograph, portrait or sketch taken or made of the person while he is entering or leaving the court-room or any such building or precincts as aforesaid.

Amendment
of s. 4 of
Vagrancy
Act, 1824.
5 Geo. 4.
c. 83.

42. The words “in any street, road, or public highway, or in the view thereof, or in any place of public resort,” in section four of the Vagrancy Act, 1824, are hereby repealed.

Amendment
of s. 15 of
Theatres
Act, 1843.
6 & 7 Vict.
c. 68.

43. So much of section fifteen of the Theatres Act, 1843 (which enacts a penalty for acting plays before they have been allowed or after they have been disallowed by the Lord Chamberlain) as provides that the licence (if any) of a theatre in which an offence under that section is committed shall become absolutely void shall cease to have effect, but the court dealing with any such case may, in their discretion, in addition to imposing a pecuniary penalty under that section, order that the licence, if any, of the theatre in which the offence was committed shall become void or shall be suspended for any specified period.

PART IV.

MISCELLANEOUS AND GENERAL.

Power of
arrest under
warrant.

44. Any warrant lawfully issued by a justice for apprehending any person charged with any offence may be executed by any constable at any time notwithstanding that the warrant is not in his possession at that time, but

the warrant shall, on the demand of the person apprehended, be shown to him as soon as practicable after his arrest.

45. The section substituted by section twenty-two of the Criminal Justice Administration Act, 1914, for section thirty-eight of the Summary Jurisdiction Act, 1879, shall have effect as though the following subsection were added thereto :

Power to
release on
bail before
chargé is
accepted.

“(2) If, on a person being so taken into custody as aforesaid, it appears to the superintendent, inspector or other officer aforesaid that the enquiry into the case cannot be completed forthwith, he may discharge the said person on his entering into a recognizance, with or without sureties for a reasonable amount, to appear at such police station and at such time as is named in the recognizance, unless he previously receives notice in writing from the officer of police in charge of that police station that his attendance is not required, and any such recognizance may be enforced as if it were a recognizance conditioned for the appearance of the said person before the court of summary jurisdiction for the place in which the police station named in the recognizance is situate.”

46.—(1) Section ten of the Criminal Justice Administration Act, 1914 (which empowers a court of summary jurisdiction in certain cases to commit an offender to prison until the next quarter sessions, and empowers the court of quarter sessions to sentence the offender to detention in a Borstal institution) shall have effect as though for the words “the next quarter sessions” there were substituted the words “the next assizes or quarter sessions, whichever appears to the court to be more convenient,” and as though for the words “court of quarter sessions” wherever they occur in that section there were substituted the words “court of assize or court of quarter sessions, as the case may be.”

Amendments
as to deten-
tion in
Borstal
institutions.

(2) Where any person is, under the law for the time being in force, sentenced by any court in the Isle of Man or the Channel Islands to detention in a Borstal institution, he may, if the Secretary of State by order so directs, be

8 Edw. 7.
c. 59.

removed to and detained in a Borstal institution in England, and if so detained shall, subject as hereinafter provided, be liable to be dealt with in every respect in the same manner as if he had been sentenced under the Prevention of Crime Act, 1908, by a court in England to detention in such an institution :

Provided that—

- (a) if any person who by virtue of this section has been removed from the Isle of Man or the Channel Islands and is undergoing detention in a Borstal institution is released on licence, he may be placed under the supervision or authority of a society or person in the Isle of Man or the Channel Islands, as the case may be ; and
- (b) where a licence granted to any such person under the said Act is revoked, he may, if in the Isle of Man or the Channel Islands, without warrant be apprehended therein and removed therefrom to England for the purpose of being taken to the institution, and where any such licence is forfeited the provisions of subsection (5) of section five of the said Act shall apply as if references therein to a court of summary jurisdiction included a reference to any court exercising corresponding jurisdiction in the Isle of Man or the Channel Islands.

Abolition of
presumption
of coercion
of married
woman by
husband.

47. Any presumption of law that an offence committed by a wife in the presence of her husband is committed under the coercion of the husband is hereby abolished, but on a charge against a wife for any offence other than treason or murder it shall be a good defence to prove that the offence was committed in the presence of, and under the coercion of, the husband.

Amendment
of Schedule I.
of Children
Act, 1908.
8 Edw. 7.
c. 67.

48. For the purpose of removing doubts, it is hereby declared that the expression “any other offence involving “bodily injury to a child or young person” in the First Schedule to the Children Act, 1908, includes the following offences, that is to say, the murder or manslaughter of a child or young person and infanticide.

Short title,
interpreta-
tion, extent,

49.—(1) This Act may be cited as the Criminal Justice Act, 1925.

(2) In this Act, unless the context otherwise requires— repeal
and com-
mencement.

The expression “examining justices” means the justices before whom a charge is made against any person for an indictable offence, and references to examining justices include a reference to a single examining justice :

The expression “quarter sessions” includes quarter sessions held by adjournment and intermediate general sessions.

(3) This Act shall not extend to Scotland or Northern Ireland, and references therein to warrants issued shall not be construed as including warrants issued elsewhere than in England or Wales.

(4) The enactments set out in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(5) This Act, except Part I. thereof, shall come into operation on the first day of June, nineteen hundred and twenty-six, and Part I. of this Act shall come into operation on the first day of July, nineteen hundred and twenty-six.

SCHEDULES.

FIRST SCHEDULE.

Section 18.

OFFENCES TRIABLE AT QUARTER SESSIONS.

1. Offences under sections sixteen and seventeen of the Malicious Damage Act, 1861. 24 & 25 Vict.
c. 97.
2. Unlawful combinations and conspiracies to cheat and defraud.
3. Offences under section thirteen of the Criminal Law Amendment Act, 1885, as amended by any other enactment, in respect of which the accused claims to be tried with a jury. 48 & 49 Vict.
c. 69.
4. Offences under sections fifty to fifty-six of the Post Office Act, 1908. 8 Edw. 7.
c. 48.
5. Offences under section five of the Perjury Act, 1911, in relation to statements in statutory declarations. 1 & 2 Geo. 5.
c. 6.

1ST SCH.
—*cont.*
3 & 4 Geo. 5.
c. 27.

6. Offences under paragraph (a) of subsection (2) of section two of the Forgery Act, 1913, in relation to any document being an authority or request for the payment of money or for the delivery or transfer of goods and chattels where the amount of the money or the value of the goods or chattels does not exceed twenty pounds, and, under paragraph (a) of section seven of that Act, where the amount of the money or the value of the property in respect of which the offence is committed does not exceed twenty pounds, and uttering any forged document the forgery of which is an offence triable at quarter sessions.

6 & 7 Geo. 5.
c. 50.

7. Offences under the following provisions of the Larceny Act, 1916, that is to say, section twelve, section eighteen, paragraph (iv) of subsection (1) of section twenty, section twenty-four and subsection (2) of section thirty-three.

Section 24.

SECOND SCHEDULE.

INDICTABLE OFFENCES BY ADULTS WHICH MAY BE
DEALT WITH SUMMARILY.

24 & 25 Vict.
c. 97.

1. Offences under sections sixteen, twenty, twenty-one and fifty-one of the Malicious Damage Act, 1861, as amended by any other enactment.

24 & 25 Vict.
c. 99.

2. Misdemeanours under the Coinage Offences Act, 1861.

24 & 25 Vict.
c. 100.

3. Offences under sections twenty and forty-seven of the Offences against the Person Act, 1861.

31 & 32 Vict.
c. 110.

4. Offences under section twenty of the Telegraph Act, 1868.

32 & 33 Vict.
c. 62.

5. Offences under paragraph (1) of section thirteen of the Debtors Act, 1869.

38 & 39 Vict.
c. 24.

6. Offences under the Falsification of Accounts Act, 1875.

54 & 55 Vict.
c. 38.

7. Offences under section thirteen of the Stamp Duties Management Act, 1891.

8. Offences under sections fifty to fifty-six of the Post Office Act, 1908.

9. Offences under section five of the Perjury Act, 1911, in relation to statements in statutory declarations.

2ND SER.
—cont.

10. Offences under paragraph (a) of subsection (2) of section two of the Forgery Act, 1913, in relation to any document being an authority or request for the payment of money or for the delivery or transfer of goods and chattels, where the amount of the money or the value of the goods or chattels does not exceed twenty pounds, and, under paragraph (a) of section seven of that Act, where the amount of the money or the value of the property in respect of which the offence is committed does not exceed twenty pounds.

11. Offences under section twenty-seven of the Larceny Act, 24 & 25 Vict. 1861, or under the following provisions of the Larceny Act, 1916, s. 96.
viz. :—

Sections two, four, five, eight, nine, ten and twelve, paragraph (a) of section thirteen, section fourteen, paragraphs (1) and (2) of section fifteen, section sixteen, paragraphs (1) and (2) of section seventeen, section eighteen, paragraph (1) of section thirty-two, subsections (1) and (2) of section thirty-three, and section thirty-five so far as it applies to the aforesaid sections.

12. Offences under this Act in relation to passports.

13. Attempted suicide.

14. Publishing, exhibiting or selling any indecent or obscene book, writing, picture or model, or any other indecent or obscene article or thing whatsoever, whether similar to the things before mentioned or not.

15. Committing an indecent assault upon a person, whether male or female, who in the opinion of the court is under the age of sixteen years.

16. Offences in relation to stamps issued for the purpose of National Health Insurance or Unemployment Insurance under the provisions of any enactments as applied to those stamps.

17. Aiding, abetting, counselling or procuring the commission of any indictable offence which may be dealt with summarily, or attempting to commit any such offence.

18. Any offence consisting in the incitement to commit a summary offence, and the offence of inciting to commit any indictable offence which may be dealt with summarily.

THIRD SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
36 Edw. 3 -	A Statute made in the Parliament holden at Westminster in the fifteenth of Saint Michael in the thirty-sixth year, Statute the first.	Chapter twelve.
2 Hen. 5 -	Statute the first of the second year of King Henry the Fifth.	In chapter four the words from "that is to say, in the first " week " to the end.
54 Geo. 3. c. 84.	The Quarter Sessions Act, 1814.	The whole Act.
5 Geo. 4. c. 83.	The Vagrancy Act, 1824	In section four the words "in " any street, road, or public " highway, or in the view " thereof, or in any place of " public resort."
11 Geo. 4 & 1 Will. 4. c. 70.	The Law Terms Act, 1830.	Section thirty-five.
5 & 6 Vict. c. 29.	The Pentonville Prison Act, 1842.	In section twenty-eight the words from "either at" to the words "shall be taken."
5 & 6 Vict. c. 38.	The Quarter Sessions Act, 1842.	In section one, paragraph 9.
11 & 12 Vict. c. 42.	The Indictable Offences Act, 1848.	Section eleven except so far as applied by any other provision of the Act, or by any other enactment; in section sixteen the words "within the jurisdiction of such justice", in section seventeen the words from "and if upon the trial" to the end of the section, and section eighteen.
11 & 12 Vict. c. 43.	The Summary Jurisdiction Act, 1848.	In section seven the words "within the jurisdiction of such justice."

3RD SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
24 & 25 Vict. c. 99.	The Coinage Offences Act, 1861.	Section twenty-eight.
24 & 25 Vict. c. 100.	The Offences against the Person Act, 1861.	In section forty-three the words from "and if the justices" to the end of the section, and in section fifty-seven the words "England or" where they secondly occur.
30 & 31 Vict. c. 35.	The Criminal Law Amendment Act, 1867.	Section three.
37 & 38 Vict. c. 45.	The County of Hertford and Liberty of St. Alban Act, 1874.	Sections nine, thirteen, fourteen, fifteen and eighteen.
41 & 42 Vict. c. 50.	The County of Hertford Act, 1878.	Section four.
42 & 43 Vict. c. 49.	The Summary Jurisdiction Act, 1879.	Sections twelve, thirteen, and thirty-six, paragraph 1 of section thirty-nine, section forty-five and the First Schedule.
45 & 46 Vict. c. 50.	The Municipal Corporations Act, 1882.	Section two hundred and twenty-three.
62 & 63 Vict. c. 22.	The Summary Jurisdiction Act, 1899.	Section one and the Schedule.
4 Edw. 7. c. 15.	The Prevention of Cruelty to Children Act, 1904.	Section twenty-four.
7 Edw. 7. c. 17	The Probation of Offenders Act, 1907.	As from the first day of July, nineteen hundred and twenty-six, section three.
8 Edw. 7. c. 41.	The Assizes and Quarter Sessions Act, 1908.	Section three.
8 Edw. 7. c. 48.	The Post Office Act, 1908.	In subsection (1) of section seventy-two the words from "either in" to the words "custody or."

3RD SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
8 Edw. 7. c. 67	The Children Act, 1908	Subsection (2) of section one-hundred and twenty-eight and the Second Schedule.
3 & 4 Geo. 5. c. 27.	The Forgery Act, 1913	Section fourteen.
4 & 5 Geo. 5. c. 58.	The Criminal Justice Administration Act, 1914.	Subsection (1) of section fifteen, in section eighteen the words "or on a plea of guilty", and paragraph (b) of subsection (1) of section forty.
6 & 7 Geo. 5. c. 50.	The Larceny Act, 1916	Subsection (1) of section thirty-nine.

CHAPTER 87.

An Act to amend the law relating to Tithe rentcharge and other rentcharges, rents and payments in lieu of Tithe, and the payment of rates thereon; and for other matters connected therewith. [22nd December 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

STABILISATION AND SYNCHRONISATION OF DATES OF PAYMENT OF TITHE RENTCHARGE.

Stabilisa-
tion of
tithe rent-
charge.

1.—(1) The sums becoming payable on or after the appointed day in respect of a tithe rentcharge in lieu of being computed in manner prescribed by the Tithe Acts shall be computed on the basis of one hundred and five pounds for every one hundred pounds of tithe rentcharge.

(2) The half-yearly payments on account of a pension under the Incumbents Resignation Acts, 1871 and 1887,